

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Filip Woroniecki	Team: Squad #10	CCRB Case #: 201802159	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Thursday, 03/08/2018 3:50 PM	Location of Incident: 120th Precinct stationhouse	18 Mo. SOL 9/8/2019	Precinct: 120		
Date/Time CV Reported Sat, 03/17/2018 11:27 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 03/17/2018 11:27 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Richard Caliendo	20528	958358	120 PCT
2. SGT Sean Mchugh	00441	949305	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Thomas Spinard	00069	960006	120 PCT
2. POF Nancy Heinz	13745	895355	120 PCT
3. POF Lauren Lipstein	17613	958822	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Richard Caliendo	Force: Police Officer Richard Caliendo used physical force against § 87(2)(b)	A . Exonerated
B . POM Richard Caliendo	Abuse: Police Officer Richard Caliendo interfered with § 87(2)(b)'s use of a recording device.	B . Exonerated
C . POM Richard Caliendo	Force: Police Officer Richard Caliendo used physical force against § 87(2)(b)	C . Exonerated
D . POM Richard Caliendo	Off. Language: Police Officer Richard Caliendo made remarks to § 87(2)(b) based upon her perceived mental disability.	D . Substantiated
E . SGT Sean Mchugh	Abuse: Sergeant Sean McHugh did not obtain medical treatment for § 87(2)(b)	E . Exonerated

Case Summary

On March 17, 2018, § 87(2)(b) filed this complaint with the CCRB via the on-line website.

On March 8, 2018, at about 3:50 p.m., § 87(2)(b) was at the 120th Precinct stationhouse to obtain a police escort. While there, § 87(2)(b) spoke with PO Lauren Lipstein and PO Richard Caliendo of the 120th Precinct. PO Caliendo instructed § 87(2)(b) to leave the stationhouse on numerous occasions and allegedly pushed her on the shoulders about twenty times. On one occasion, the push allegedly caused § 87(2)(b) to fall to the ground (**Allegation A: Force – Physical Force, Exonerated**). As § 87(2)(b) began to record the incident with her cellphone, PO Caliendo backhanded her phone, which caused it to fall to the sidewalk (**Allegation B: Abuse of Authority – Interference with recording, Exonerated**). PO Caliendo then allegedly grabbed § 87(2)(b) by her torso and shoulders, picked her up in the air, and slammed her against the sidewalk, causing swelling and pain to the right side of her face, a black eye (right), and right foot pain. PO Caliendo then allegedly picked § 87(2)(b) up by pulling on the chain of her handcuffs, causing swelling and superficial cuts to her wrists (**Allegation C: Force – Physical Force, Exonerated**) and stated to her, “You’re crazy because you don’t stop” (**Allegation D: Offensive Language – Other, Substantiated**). While inside of a holding cell, § 87(2)(b) informed PO Nancy Heinz of the 120th Precinct that she needed medical attention as her wrist and face became swollen, however, § 87(2)(b) did not receive any medical treatment while in police custody (**Allegation E: Abuse of Authority - Refusal to obtain medical treatment, Exonerated**). § 87(2)(b) was arrested as a result of this incident.

BWC footage of the incident was obtained from PO Caliendo (**Board Review 01**), PO Lipstein (**Board Review 02**), PO Thomas Spinard of the 120th Precinct (**Board Review 03**) and PO Heinz (**Board Review 04, 05 and 06**).

Findings and Recommendations

Allegation A: Force: Police Officer Richard Caliendo used physical force against § 87(2)(b)

Allegation B: Abuse of Authority: Police Officer Richard Caliendo interfered with § 87(2)(b)'s use of a recording device.

§ 87(2)(b) stated that while she was in front of the entrance of the 120th Precinct stationhouse, she spoke with officers identified via the investigation as PO Lipstein and PO Caliendo. When PO Lipstein informed § 87(2)(b) that officers could not fulfill her access order at this time, § 87(2)(b) got into a verbal argument with PO Caliendo, moved her arms a lot, and spoke in a loud upset tone. PO Caliendo instructed § 87(2)(b) to leave, to which she replied, “I don’t need to leave, I’m waiting for a police escort” and yelled, “I just wanna get my shit!” PO Caliendo then moved closer to § 87(2)(b) told her to leave on yet another occasion, and pushed her on the shoulder with one of his hands. The push caused § 87(2)(b) to take a step back. PO Caliendo continued to tell § 87(2)(b) to leave, and each time he did that, he pushed her on the shoulders with one or two hands. In total, PO Caliendo pushed § 87(2)(b) about twenty times, until they walked down the stairs and reached the sidewalk. On one occasion, the push caused § 87(2)(b) to fall, and her tailbone made contact with the stairs. The fall caused pain to § 87(2)(b)'s tailbone, which she still experiences while sitting on hard surfaces. As PO Caliendo repetitively pushed § 87(2)(b) and instructed her to leave, § 87(2)(b) replied on multiple occasions that she was not leaving, and held onto the railing of the stairs, to “stand her ground.”

§ 87(2)(b) also attempted to go around PO Caliendo and back inside of the stationhouse, but was unsuccessful in doing so as PO Caliendo stood in her path. As § 87(2)(b) and PO Caliendo reached the sidewalk, § 87(2)(b) told PO Caliendo to stop putting his hands on her, and stated, “Yo, you’re gonna make me hit you.” § 87(2)(b) then pulled out her cellphone, and began recording PO Caliendo while holding it about a foot away from PO Caliendo’s face. After about three minutes, PO Caliendo backhanded § 87(2)(b)’s phone, which fell out of her hand and contacted the ground. PO Caliendo did not issue § 87(2)(b) any instructions regarding the cellphone, and she believed that he hit it because of how close she held it to his face **(Board Review 07)**.

§ 87(2)(b) refused to provide a statement regarding this incident. PO Caliendo stated that while § 87(2)(b) spoke with PO Lipstein about the access order in the vestibule of the 120th Precinct stationhouse, she became irate and began yelling, waving her arms in the air, and stated “Fuck you” to PO Lipstein in loud tone. Seeing this, PO Caliendo, who was positioned directly outside of the stationhouse, instructed § 87(2)(b) to “leave.” As § 87(2)(b) exited the stationhouse and positioned herself in front of PO Caliendo, she stated to him, “I’m not leaving” and “I’m not going anywhere.” While yelling and waving her arms in the air, § 87(2)(b) then stated, “Fuck you” to PO Caliendo and remained by the entrance of the stationhouse. In total, PO Caliendo instructed § 87(2)(b) to “leave” about ten times, and gently pushed her on the arm with one of his hands on about two occasions. § 87(2)(b) did not lose her balance, take a step back, or fall to the ground as a result of the push. On one occasion, as PO Caliendo pushed § 87(2)(b) on the arm, she turned around and threatened him with a clenched fist, stating, “Don’t touch me, I’m gonna pop off on you.” As § 87(2)(b) reached the bottom of the stairs, she pulled out her cellphone and placed it two to three inches away from PO Caliendo’s face where she held it for a few seconds. PO Caliendo, who suspected that § 87(2)(b) wanted to use the cellphone as a weapon, struck it with an open hand. The cellphone fell out of § 87(2)(b)’s hand and contacted the sidewalk **(Board Review 08)**.

Sergeant McHugh § 87(2)(g) statement that § 87(2)(b) came to the 120th Precinct stationhouse to obtain a police escort, and that she was told by PO Caliendo to leave on multiple occasions, with little effect. A few minutes after § 87(2)(b) exited the stationhouse, Sergeant McHugh was approached by PO Lipstein, who asked him to come outside and stated that § 87(2)(b) was “really out of control.” As Sergeant McHugh exited the stationhouse, he observed § 87(2)(b) yelling and waving her arms in the air while inches away from PO Caliendo’s face. § 87(2)(b) was repeatedly screaming “look” at PO Caliendo and her behavior caused a crowd to form in front of the stationhouse. Sergeant McHugh did not observe PO Caliendo hit or slap § 87(2)(b)’s cellphone out of her hand. After § 87(2)(b) was placed in a holding cell, Sergeant McHugh was informed by PO Caliendo that as § 87(2)(b) refused to leave the stationhouse, he gave her a “little nudge.” However, he was not present for this portion of the incident and did not observe whether § 87(2)(b) fell to the ground because of the push **(Board Review 09)**.

PO Heinz did not observe this portion of the incident and was unaware of any physical force used by PO Caliendo on § 87(2)(b) **(Board Review 10)**.

Video recording of the incident was obtained from PO Caliendo’s BWC. Snag-it clip of the video was embedded below.



2018-09-18_14-56-50.mp4

Allegation C: Force: Police Officer Richard Caliando used physical force against § 87(2)(b)

§ 87(2)(b) stated that as she picked up her phone from the sidewalk, she heard PO Caliando ask Sergeant McHugh, who was standing on top of the stairs, if he could arrest her. Sergeant McHugh replied, “Yes” and PO Caliando picked up § 87(2)(b) by her torso and shoulders with both of his hands and slammed her on the ground. The right side of § 87(2)(b)'s face and body made contact with the sidewalk, causing pain to her lower back and right foot, as well as swelling and bruising to her right eye. PO Caliando then placed his knee on § 87(2)(b)'s back, placed her in handcuffs, and picked her up from the ground by holding onto the chain of her handcuffs. PO Caliando did not ask § 87(2)(b) to get up prior to lifting her up and she did not physically refuse to get up from the ground. PO Caliando maintained his grip on the chain of § 87(2)(b)'s handcuffs as they walked up about twenty stairs and entered the stationhouse. § 87(2)(b) did not refuse to walk on her own, though she stated that her feet were dragging on the stairs. As a result of being lifted by the chain of the handcuffs, § 87(2)(b) sustained pain, superficial cuts, and swelling to both of her wrists. § 87(2)(b) informed PO Caliando that she was in pain as she yelled, “The cuffs, the cuffs, you’re hurting me.” § 87(2)(g)

§ 87(2)(b) refused to provide a statement regarding this incident.

PO Caliando stated that he asked Sergeant McHugh, who exited the stationhouse and was walking toward him, if he could arrest § 87(2)(b). Sergeant McHugh replied, “Yes” and PO Caliando reached for one of § 87(2)(b)'s wrists with his hand. As PO Caliando made physical contact with § 87(2)(b)'s wrist, she pulled her arm away. PO Caliando then applied his elbow to § 87(2)(b)'s triceps and swiftly pulled her down to the ground. Only § 87(2)(b)'s chest made contact with the sidewalk and PO Caliando did not observe any injuries to her head or face. While on the ground, § 87(2)(b) initially tensed her arms for a few seconds as PO Caliando attempted to handcuff her. When PO Caliando instructed § 87(2)(b) to give him her hands, § 87(2)(b) ceased tensing her arms and obeyed the command. § 87(2)(b) stood up on her own and PO Caliando did not pick her up the chain of her handcuffs. Similarly, PO Caliando did not make physical contact with § 87(2)(b)'s handcuffs as she walked up the stairs leading to the stationhouse, and only placed his hand on the back of her arm. § 87(2)(b) walked up the stairs on her own, did not drag her feet, and was never lifted off the ground (**Board Review 08**).

Sergeant McHugh stated that PO Caliando asked him if he could arrest § 87(2)(b) while in front of the stationhouse. After Sergeant McHugh replied, “Yes,” PO Caliando reached for § 87(2)(b)'s arm and she jerked it away from him. PO Caliando then successfully grabbed § 87(2)(b)'s arm and pulled her down to the ground. The front of § 87(2)(b)'s body, including her chest and knees, contacted the sidewalk, and Sergeant McHugh did not observe any other parts of her body, including her face, touch the ground. Sergeant McHugh did not observe any injuries to § 87(2)(b)'s face, including swelling and a black eye (right), and was not informed by any officers that she sustained such injuries. Sergeant McHugh denied that PO Caliando picked § 87(2)(b) up by holding onto the chain of her handcuffs. § 87(2)(b) walked inside of the stationhouse on her own while PO Caliando guided her up the steps by holding her arm. PO Caliando did not hold or lift § 87(2)(b) up by the chain of her handcuffs while walking up the stairs. Sergeant McHugh did not observe any swelling, bruising or cuts on § 87(2)(b)'s wrists and was never informed that she sustained any injuries to her hands (**Board Review 09**).

PO Heinz did not observe this portion of the incident and was unaware of any physical force used by PO Caliando on § 87(2)(b) (**Board Review 10**).

Video recording of the incident was obtained from PO Caliendo's BWC. Snag-it clip of the video was embedded below.



2018-09-18_14-56-50.mp4

At 01:00 minutes in the recording, § 87(2)(b) placed her right hand containing the cellphone inches away from PO Caliendo. As PO Caliendo moves his hand toward § 87(2)(b)'s right forearm, § 87(2)(b) moves her right arm out of the way in a swinging motion. At 01:03 minutes, PO Caliendo grabs § 87(2)(b)'s right arm with his left hand, while telling her, "Get out of here, you're gonna get arrested." At 1:08 minutes, PO Caliendo states to another officer, "Can I collar her?" and a male's voice replies, "Yes." PO Caliendo then grabs § 87(2)(b)'s right forearm and grips it with his left hand. § 87(2)(b)'s body can be seen turning around as she is brought down to the ground. As § 87(2)(b)'s torso and legs make contact with the sidewalk, the angle of the BWC shows that PO Caliendo is holding § 87(2)(b)'s left wrist with his other hand. § 87(2)(b)'s face does not appear to hit the ground and her chin is up while PO Caliendo begins to place her left arm in handcuffs. Between 01:18 and 01:22 minutes, § 87(2)(b) extends her left arm perpendicular to her torso while PO Caliendo grabs her right arm and rear cuffs her. PO Caliendo can be seen either standing or sitting over § 87(2)(b)'s back. He then gets up, hooks his right hand under § 87(2)(b)'s left arm, and picks her up in this manner. PO Lipstein can be seen hooking her left arm under § 87(2)(b)'s right arm, and picking her up in a similar manner. PO Caliendo's BWC does not clearly show § 87(2)(b) being walked up the stairs, and only momentarily captures her walking up the steps on her own. At 01:53, § 87(2)(b) can be heard saying, "Y'all hurting my wrists, y'all hurting my wrists" (**Board Review 11**).

Video recording of the incident was obtained from PO Lipstein's BWC. Snag-it clip of the video was embedded below.



2018-09-18_16-38-38.mp4

PO Lipstein's BWC recording captures PO Caliendo and § 87(2)(b) in front of the 120th Precinct stationhouse. § 87(2)(b) records PO Caliendo with her cellphone from close proximity. At 00:22 minutes on the recording, § 87(2)(b) pulls her right arm away from PO Caliendo as he is trying to grasp it with his left hand. At 00:29 minutes, PO Caliendo grabs § 87(2)(b)'s wrist with his right hand, places his left hand on her upper arm, and pushes her down to the ground in a sweeping motion. The recording has no audio (**Board Review 12**).

PO Caliendo's memo book and § 87(2)(b)'s arrest report referenced that § 87(2)(b) made verbal and physical threats to PO Caliendo and that she "proceeded to shove" her cellphone in PO Caliendo's face during the incident (**Board Review 13 and 14**).

The TRI report noted that a forcible takedown was used against § 87(2)(b) to overcome her "resistance" or "aggression" and that § 87(2)(b) did not sustain any injuries and refused medical attention (**Board Review 15**).

§ 87(2)(b)'s arrest photograph and her CCRB photograph did not show any injuries to her face, including bruising, swelling or lacerations (**Board Review 16 and 33**).

§ 87(2)(a) PHL § 18(6)

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Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. NYPD Patrol Guide, Section 221-01 (**Board Review 17**).

All interviewed parties acknowledged that PO Caliendo forcefully took § 87(2)(b) to the ground in order to place her into custody. § 87(2)(b) alleged that as a result of being taken to the ground, the right side of her face became swollen and bruised, which PO Caliendo and Sergeant McHugh denied. § 87(2)(g)

PO Caliendo's BWC footage did not depict § 87(2)(b)'s face or head contacting the ground. § 87(2)(b)'s arrest photograph, CCRB photograph, and the officers' BWC recordings did not show any signs of swelling, bruising, or other injuries on § 87(2)(b)'s face.

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

§ 87(2)(b) also alleged that PO Caliendo picked her up from the ground by holding onto the chain of her handcuffs and that he pulled on the chain of her handcuffs while walking her up the stairs. However, all interviewed officers denied that this happened, and PO Caliendo's BWC footage did not show this. § 87(2)(g)

It is therefore recommended that **Allegation C** be **Exonerated**.

Allegation D: Offensive Language: Police Officer Richard Caliendo made remarks to § 87(2)(b) based upon her perceived mental disability.

Video recording of the incident was obtained from PO Caliendo's BWC. Snag-it clip of the video was embedded below.



2018-09-19_11-10-01.mp4

The recording shows § 87(2)(b) seated on a chair in the lobby of the stationhouse, accompanied by PO Lipstein and PO Caliendo, whose BWC captures the interaction. After § 87(2)(b) is heard yelling about the incident, she states, "This is crazy god." PO Caliendo, who is seen patting down her jacket pockets and pants, replies, "You're crazy cause you don't stop" (**Board Review 19**).

§ 87(2)(b) did not mention this allegation in any of her statements made to the CCRB (**Board Review 07**).

PO Caliendo did not recall telling § 87(2)(b) that she was "crazy" or behaved in a "crazy" manner. After reviewing the BWC recording which captures this portion of the incident, PO Caliendo acknowledged telling § 87(2)(b) "You're crazy cause you don't stop" during the incident. PO Caliendo elaborated that his statement was not meant to comment on § 87(2)(b)'s

perceived disability and was used by him to highlight § 87(2)(b)'s "irrational" actions, exhibited by her continuous refusal to leave the stationhouse and threats of force.

Police officers are prohibited from making discourteous or disrespectful remarks regarding another person's disability NYPD Patrol Guide, Section 203-10 (**Board Review 20**).

§ 87(2)(g) It is therefore recommended that **Allegation D** be **Substantiated**.

Allegation E: Abuse of Authority: Sergeant Sean McHugh did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) stated that a couple minutes after she was brought inside of the 120th Precinct stationhouse, she was approached by a female EMT. The EMT informed § 87(2)(b) that she was going to be taken to a "psych ward" and § 87(2)(b) replied that there was nothing wrong with her and that she was not going anywhere. The EMT attempted to hand § 87(2)(b) some paperwork, which she did not review and refused to sign. As § 87(2)(b) asked the EMT to check her face and wrist, PO Caliendo escorted her to the second floor of the stationhouse and placed her in a holding cell. Soon after § 87(2)(b) entered the cell, she informed PO Heinz that her left wrist was numb and swollen, and that she needed medical attention as there was something "definitely wrong" with it. PO Heinz replied that she was going to bring it to "their" attention and exited the holding cell area. PO Heinz returned to § 87(2)(b) a few minutes later and § 87(2)(b) once again asked her for medical attention. PO Heinz replied, "We're waiting for them," which she later repeated to § 87(2)(b) on two more occasions. § 87(2)(b) did not receive any further medical attention while in police custody and sought it on her own, a few days after her arrest. § 87(2)(g)

Sergeant McHugh stated that following § 87(2)(b)'s arrest, she was brought inside of the 120th Precinct stationhouse and seated on a chair, located a few feet away from the desk. Because of § 87(2)(b)'s refusal to leave the stationhouse and her continuous screaming, Sergeant McHugh believed that she was emotionally disturbed or under the influence of drugs, and requested EMS to the location. A few minutes later, EMTs arrived at the stationhouse and spoke with § 87(2)(b) who calmed down and was no longer deemed to be emotionally disturbed by Sergeant McHugh. Sergeant McHugh observed the EMTs take § 87(2)(b)'s vitals, however, he did not see them inspect her for injuries. One of the EMTs informed Sergeant McHugh that § 87(2)(b) did not want to be taken to a hospital, and he did not know whether § 87(2)(b) refused to sign any medical paperwork. Approximately an hour after § 87(2)(b) met with the EMTs, Sergeant McHugh was informed by PO Heinz that § 87(2)(b) wanted to go to the hospital. Sergeant McHugh asked PO Heinz whether § 87(2)(b)'s "situation" changed since she was seen by the EMTs and PO Heinz replied, "Not that I can see." Sergeant McHugh then advised PO Heinz to notify him if § 87(2)(b)'s "situation" changed, and PO Heinz returned to the second floor of the stationhouse and did not return. Sergeant McHugh did not interact with § 87(2)(b) personally and did not contact EMS for § 87(2)(b) again (**Board Review 09**).

PO Heinz stated that after § 87(2)(b) was placed inside of a holding cell by PO Caliendo, she began yelling and informed PO Heinz that she needed medical attention and wanted to go to a hospital as her eye and wrist were swollen. PO Heinz did not observe any swelling to § 87(2)(b)'s eye or wrist, and did not see any other injuries on her body. PO Heinz then informed Sergeant McHugh that § 87(2)(b) requested medical attention. Sergeant McHugh replied that § 87(2)(b) was already seen by EMTs and refused medical attention. PO Heinz did not remember if Sergeant McHugh informed her whether he was going to contact EMS for § 87(2)(b) or if he gave her any additional information relating to her request. Sergeant McHugh did

not give tell PO Heinz how she should reply to § 87(2)(b)'s request for medical attention. Following her conversation with Sergeant McHugh, PO Heinz returned to § 87(2)(b)'s cell and informed her that “they’re aware of it” and will come get her. PO Heinz denied telling § 87(2)(b) that she was waiting for EMS or that they were coming. PO Heinz did not remember if § 87(2)(b) received medical treatment following her conversation with Sergeant McHugh **(Board Review 10)**.

PO Caliendo stated that after he brought § 87(2)(b) inside of the stationhouse, she informed him that her wrists were hurting and EMS was called to the location. PO Caliendo believed that it was Sergeant McHugh who called the EMS. PO Caliendo noted that § 87(2)(b) was uncooperative with the EMTs, though he could not specify what exactly she was doing. § 87(2)(b) did not physically prevent the EMTs from examining her and taking her vitals, and he did not remember if she refused to answer any of their questions. § 87(2)(b) eventually refused medical treatment and did not want to be taken to a hospital, and PO Caliendo did not observe any injuries to her wrists or face. Once § 87(2)(b) expressed this to EMTs, PO Caliendo walked her over to the second floor of the stationhouse, to get her “cleared” before placing her in a holding cell. PO Caliendo believed that prior to being placed in a holding cell, § 87(2)(b) conversed with an EMT, but did not want her to inspect her face for injuries. § 87(2)(b) did not inform PO Caliendo why she refused medical attention and did not want to be checked by the EMT while at the stationhouse. PO Caliendo did not remember if § 87(2)(b) informed him that she required medical attention after she was seen by the EMTs, and he was not informed by § 87(2)(b) or another officer that PO Heinz or Sergeant McHugh refused to obtain medical treatment for her. PO Caliendo was also unaware of any conversation between PO Heinz and Sergeant McHugh regarding obtaining medical treatment for § 87(2)(b) **(Board Review 08)**.

Video recording of this portion of the incident was obtained from PO Lipstein’s BWC. Snag-it clip of the video was embedded below.



2018-09-20_11-04-44.mp4

The recording depicts § 87(2)(b)'s conversation with a female EMT while at the 120th Precinct stationhouse. When the EMT asks § 87(2)(b) what is wrong, and at 00:05 minutes on the recording, § 87(2)(b) replies, “There’s nothing wrong, I’m perfectly fine, and I’m not going to the hospital.” At 02:27 minutes, § 87(2)(b) once again states, “I’m not going to the hospital” and the female EMT informs her that she is going to check her vitals **(Board Review 21)**.

Video recording of this portion of the incident was obtained from PO Caliendo’s BWC. Snag-it clip of the video was embedded below.



2018-09-20_11-08-17.mp4

PO Caliendo’s BWC recording shows § 87(2)(b)'s interaction with the female EMT on the second floor of the stationhouse, shortly before she is placed in a holding cell. At 00:24 minutes on the recording, § 87(2)(b) states to the EMT, “You didn’t even check my face” and refuses to have it inspected by the EMS **(Board Review 22)**.

Video recording of this portion of the incident was obtained from PO Heinz’s BWC. Snag-it clip of the video was embedded below.



2018-09-20_11-59-19.mp4



2018-09-20_12-00-17.mp4

In the first recording, § 87(2)(b) states to PO Heinz, “I need a doctor. My wrist is throbbing and my face is starting to swell up.” PO Heinz replied, “Let me see what’s going on” and she walks away from § 87(2)(b)’s holding cell. In the second recording, PO Heinz states to § 87(2)(b) “I let them know that you wanna go to the hospital.” § 87(2)(b) then explains to PO Heinz that she did not want to go to the hospital when she spoke with EMTs but wants to go there now as her “face is swollen” and her wrist is “now swollen to a maximum” (**Board Review 23 and 24**).

The TRI report noted that § 87(2)(b) did not sustain any injuries and refused medical attention (**Board Review 15**) and her arrest photograph does not depict any injury to her face, including bruising, swelling or lacerations (**Board Review 16**).

§ 87(2)(a) PHL § 18(6)

The MTPR prepared by Sergeant McHugh noted that § 87(2)(b) did not require medical attention and that she refused to obtain in while at the 120th Precinct stationhouse (**Board Review 25**).

Officers need to obtain medical treatment for a prisoner in custody when he or she requires medical treatment. NYPD Patrol Guide, Section 210-04 (**Board Review 26**). Officers are to ensure that prisoners who appear ill or injured obtain appropriate medical treatment. NYPD Patrol Guide, Section 208-03 (**Board Review 27**).

It is undisputed that following § 87(2)(b)’s arrest, EMS was called because she appeared to be emotionally disturbed, and that she repeatedly refused medical treatment and did not want to be transported to a hospital, which she communicated to EMTs. § 87(2)(g)

While § 87(2)(b) alleged that as a result of this incident, she sustained multiple injuries, including swelling and bruising to her face and left wrist, she informed the EMTs that there was “nothing wrong with [her]” and that she was “perfectly fine.” The EMTs also checked § 87(2)(b)’s vitals, and when they offered to inspect her face, § 87(2)(b) refused. Despite § 87(2)(b) telling PO Heinz that her face and wrist were swollen to “a maximum” while she was in a holding cell, all interviewed officers did not observe any injuries on § 87(2)(b). § 87(2)(b)’s arrest photograph, taken after she spoke with PO Heinz about obtaining medical treatment, did not show any swelling, discoloration or a black eye. As per BWC footage located in **Board Review 23 and 24**, § 87(2)(b) requested to go to a hospital less than 15 minutes after she refused to be treated by EMS. § 87(2)(b) also did not seek medical attention on her own up until six days after the incident, and § 87(2)(b), § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation E** be **Exonerated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed one prior CCRB complaint (**Board Review 28**).
- PO Caliendo has been a member of service for three years and has not been a subject in any prior allegations (**Board Review 29**).
- Sergeant McHugh has been a member of service for eight years and has not been a subject in any prior allegations (**Board Review 30**).

Mediation, Civil and Criminal Histories

- This case was unsuitable for mediation due to § 87(2)(b)'s arrest.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of September 17, 2018, there was no Notice of Claim filed for this complaint (**Board Review 32**).

Squad No.: 10

Investigator: _____ INV. WORONIECKI 10/24/2018
Signature Print Title & Name Date

Squad Leader: _____

Signature IM RIGIE Date
Print Title & Name

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____